

1 ENGROSSED SENATE AMENDMENTS
TO
2 ENGROSSED HOUSE
BILL NO. 1933 By: Sterling of the House
3
and
4
Weaver of the Senate
5
6

7 An Act relating to nitrous oxide; providing
8 definition; prohibiting the sale of nitrous oxide to
9 persons under twenty-one; requiring proof of legal
10 age; providing for enforcement; providing penalty;
11 providing for imprisonment; providing exceptions;
12 providing for noncodification; providing for
13 codification; and providing an effective date.

14
15 AUTHOR: Add the following Senate Coauthors: Frix, Jett, and
16 McIntosh

17 AMENDMENT NO. 1. Page 3, line 16, delete after the word "violates"
18 and before the word "subsection", the word "this"
19 and insert the words "the provisions of"

20 AMENDMENT NO. 2. Page 3, line 16, insert after the word
21 "subsection" and before the word "after", the
22 words "E of this section"

23 AMENDMENT NO. 3. Page 3, line 17, delete after the words "violation
24 of" and before the word "subsection", the word
"this"

AMENDMENT NO. 4. Page 3, line 17, insert after the word
"subsection" and before the comma, the words "E of
this section"

1 Passed the Senate the 20th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 1933

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12 codification; and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. NEW LAW A new section of law not to be
15 codified in the Oklahoma Statutes reads as follows:

16 This act shall be known and may be cited as the "Maddix Bias
17 Act".

18 SECTION 2. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 465.22 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 As used in this section:

22 A. "Nitrous oxide" means any of the following substances: N2O,
23 dinitrogen monoxide, dinitrogen oxide, nitrogen oxide, or laughing
24 gas.

1 B. 1. This act prohibits any person to inhale, ingest, or
2 possess with intent to breathe, inhale, or drink any compound,
3 liquid, or chemical containing nitrous oxide, or any similar
4 substance for the purpose of inducing a condition of intoxication or
5 which distorts or disturbs the auditory, visual, or mental
6 processes; and

7 2. It is unlawful for any person to inhale, ingest, possess,
8 buy, sell, or otherwise transfer any chemical substance defined in
9 subsection A of this section for the purpose of inducing or aiding
10 any other person to violate the provisions of paragraph 1 of this
11 subsection.

12 C. On and after the effective date of this act, violation of
13 subsection B of this section is a misdemeanor with imprisonment up
14 to ninety (90) days or a fine of Five Thousand Dollars (\$5,000.00),
15 or both. The court may require any person to participate in an
16 approved drug rehabilitation program as a condition of probation.

17 D. Any person who knowingly distributes, sells, purchases,
18 transfers, or possesses more than sixteen (16) grams of nitrous
19 oxide commits a misdemeanor with imprisonment up to ninety (90) days
20 or a fine of Five Thousand Dollars (\$5,000.00), or both. Knowingly
21 distributing, selling, purchasing, transferring, or possessing more
22 than sixteen (16) grams of nitrous oxide shall be known as unlawful
23 distribution of nitrous oxide. For purposes of this subsection, in
24 addition to proving by any other means that nitrous oxide was

1 knowingly possessed, distributed, sold, purchased, or transferred,
2 proof that any person discharged, or aided another in discharging
3 nitrous oxide to inflate a balloon or any other object suitable for
4 subsequent inhalation creates an inference of the person's knowledge
5 that the nitrous oxide's use was for an unlawful purpose.

6 E. Additionally, any person twenty-one (21) years of age or
7 older who sells or offers to sell drug paraphernalia to a person
8 less than eighteen (18) years of age is guilty of a misdemeanor
9 punishable by imprisonment for up to one (1) year or a fine of up to
10 Seven Thousand Five Hundred Dollars (\$7,500.00), or both. These
11 provisions would only apply to the selling or offering of an object
12 specifically designed for inhaling nitrous oxide for recreational
13 purposes.

14 F. Pursuant to this act, the court shall order the suspension
15 of the business license, for a period of up to one (1) year of a
16 person who knowingly violates this subsection after having been
17 previously convicted of a violation of this subsection, unless the
18 owner of the business license can demonstrate a good faith attempt
19 to prevent illegal sales or deliveries by the owner's employees.

20 G. This act shall not apply to any person who administers
21 nitrous oxide for the purpose of providing medical or dental care,
22 if administered by a medical or dental practitioner licensed by this
23 state or at the direction or under the supervision of a practitioner
24 licensed by this state.

H. This act does not apply to the sale of nitrous oxide contained in food products for use as a propellant.

I. This act does not apply to the sale, use, or possession of nitrous oxide containing sulfur dioxide used for automotive purposes.

J. This act does not apply to the sale, use, or possession of nitrous oxide used in manufacturing or use in an industrial application.

K. This act does not apply to nitrous oxide cartridges or whipped cream "chargers" purchased exclusively from commercial restaurant supply companies or vendors exclusively to commercial restaurants or bakery businesses that use nitrous oxide cartridges for the sole purpose of producing whipped cream or other culinary uses.

SECTION 3. This act shall become effective November 1, 2025.

Passed the House of Representatives the 13th day of March, 2025.

Presiding Officer of the House
of Representatives

Passed the Senate the day of , 2025.

Presiding Officer of the Senate

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